

		WL 33016, at *2 [finding that Plaintiff’s litigation activity is relevant for purposes of determining Plaintiff’s capacity under Code Civ. Proc. § 352]; see also <i>Est. of Blue v. County of Los Angeles</i> (9th Cir. 1997) 120 F.3d 982, 984 [taking judicial notice of court filings in a related case to affirm the district court’s decision to dismiss the plaintiff’s complaint as untimely and deny the plaintiff equitable tolling]; <i>Willis v. Lathrop Const. Associates</i> (N.D. Cal., Feb. 25, 1998, No. C 97-3203 SI) 1998 WL 118184, at *1, <i>aff’d</i> (9th Cir. 1999) 172 F.3d 61 [“Defendants have filed various motions to dismiss, and have included requests for judicial notice, which are granted, concerning prior lawsuits and files handled by plaintiff during the years between 1982 and now. Based upon these lawsuits and files, it is clear that plaintiff has been able to “transact business” and “understand the nature or effects of his acts” within the meaning of § 352(a).”]; <i>Quan v. Smithkline Beecham Corp.</i> (9th Cir. 2005) 149 Fed.Appx. 668, 670 [“The facts that Plaintiff had hired a lawyer and filed a separate employment discrimination action are matters of undisputed public record, of which we can take judicial notice. [Citation.] Plaintiff’s ability to attend to such matters demonstrates that he is not insane within the meaning of the statute.”].) The Court is inclined to sustain the demurrer, perhaps without leave to amend. However, the Court will first offer Plaintiff an opportunity to address the request for judicial notice submitted by Defendant. Defendant to give notice.
5	Mendoza vs. ISL Employees, Inc.	TENTATIVE RULING: <u>Motion to Compel Arbitration</u> Defendants ISL Employees, Inc., Integral Senior Living, LLC, and Vivante Newport Center, LLC move to compel Plaintiff Cristal Mendoza to arbitrate her claims against Defendants and stay this action pending completion of arbitration. For the following reasons, the unopposed motion is GRANTED. On March 28, 2024, Plaintiff reviewed and signed the Employment Acknowledgment containing an Arbitration Agreement. (Torres Dec. ¶¶ 3-17 and Ex. B.) The arbitration provision states in relevant part: Employee, on the one hand, and, on the other hand ISL EMPLOYEES, INC. and any of its past, present or future parents, subsidiaries, predecessors, affiliates, successors, officers, directors, assigns, investors, agents, owners, managing agents and insurers (“Company”) for itself and also

on behalf of any professional employer organization affiliate of Paychex, Inc. (for convenience collectively “Paychex” and Paychex has agreed to be bound by this Agreement if executed on behalf of Company and will be treated as a party to and beneficiary of this Agreement) and any of Paychex’s past, present or future parents, subsidiaries, predecessors, affiliates, successors, officers, directors, assigns, investors, agents, owners, managing agents and insurers, mutually desire to resolve Disputes (defined below), arising out of or relating to Employee’s employment with Company and enter into this Mutual Dispute Resolution Agreement

(“Agreement”).

In exchange for the mutual promises contained in this Agreement, and as a condition of Employee’s continued employment with Company, Company, Employee, and Paychex (collectively, the Parties) agree that, subject to the exclusions in Section 2, any claim, dispute, or controversy arising out of or relating to Employee’s employment with Company, application for employment or the separation of that employment (“Disputes”) must be submitted to final and binding arbitration in accordance with the terms of this Agreement.

...

4) This Agreement, any arbitration proceedings held pursuant to this Agreement, and any state or federal court or other proceeding concerning arbitration under this Agreement are expressly subject to, and governed by, the Federal Arbitration Act, 9 U.S.C. § 1 et seq. (FAA). The Parties acknowledge that Company’s business and Employee’s employment involve interstate commerce

(Torres Dec., Ex. A.)

Federal Arbitration Act

The Federal Arbitration Act (“FAA”), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. The Agreement at issue in this matter expressly states that the FAA applies. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental

		principle that arbitration is a matter of contract.” (<i>AT & T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333.) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (<i>Id.</i>) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) On a motion to compel arbitration, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.) <u>The Agreement Covers the Claim Asserted by Plaintiffs</u> Defendants have met their burden of demonstrating the existence of a valid arbitration agreement with Plaintiff decedent. (Torres Dec., Ex. A.) In covering “any claim, dispute, or controversy arising out of or relating to Employee’s employment with Company, application for employment or the separation of that employment,” the Agreement covers Plaintiff’s claims against Defendants. Accordingly, the Motion to Compel Arbitration is GRANTED, and the action is STAYED pending the completion of arbitration. (Code Civ. Proc. § 1281.4.) An ADR Review Hearing is set for 9:00 a.m. on November 3, 2026, in Department N16. Defendants shall give notice of this ruling.
6	Mathews vs. Hyundai Motor America	TENTATIVE RULING: For the reasons set forth below, Defendant Hyundai Motor America’s unopposed motion to compel Plaintiff Kevin Matthews to arbitration and stay action is GRANTED.